

survive a motion to strike. (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963 ["Pleading in the language of the statute is acceptable provided that sufficient facts are pleaded to support the allegations. [Citation omitted; emphasis added.] The terms themselves are conclusory, however." (Emphasis added.)) (See also *Lackner v. North, supra*, 135 Cal. App. 4th at 1210 ["Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate" (Emphasis added.)])

The FAC mentions punitive damages twice. Once in the prayer for relief section at the end of the FAC and once in paragraph 56 as an allegation for Plaintiff's second cause of action for Violation of FEHA. (FAC ¶56 and prayer for relief ¶ 5.)

The Court will allow the exemplary, treble and punitive damages allegation in FAC ¶ 1 and prayer for relief ¶ 5 since it encompasses the mandatory statutory damages provided by Civil Code section 52 subsection a as explained above.

FAC ¶ 56 is a threadbare conclusory allegation that is simply parroting the language of the statute. This is simply not enough for this punitive damages claim to survive a motion to strike. (See FAC ¶¶ 44-56.)

Conclusion

For the reasons analyzed above, the **Motion to Strike is granted in part and denied in part. The Motion to Strike is granted as paragraph 56 and denied as paragraphs 1, 42, and prayer for damages ¶ 5.**

9. 9:00 AM CASE NUMBER: C24-03057

CASE NAME: SIOUX EWY VS. CITY OF WALNUT CREEK

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF WALNUT CREEK

TENTATIVE RULING:

Summary

On January 16, 2026, Defendant City of Walnut Creek's ("City") filed a Demurrer to Plaintiff Sioux Ewy's ("Plaintiff") complaint. In reviewing the moving papers and the Declaration of Counsel Diana S. Godwin, the Court finds that the City complied with the statutory requirement to meet and confer pursuant to Cal. Code of Civ. Proc § 430.41. The Court further finds that no timely opposition was filed and served by Plaintiff.

As such, the Demurrer is **sustained without leave to amend**. The Court will execute the proposed order lodged by the City dated January 16, 2026 and will request that the Clerk of the Court attach this tentative ruling to the proposed order. No appearance is required at the hearing on May 13, 2026.